

CHAPTER 286

STATE LANDS

AN ORDINANCE TO MAKE PROVISION FOR THE GRANT AND DISPOSITION OF STATE LANDS IN SRI LANKA; FOR THE MANAGEMENT AND CONTROL OF SUCH LANDS AND THE FORESHORE; FOR THE REGULATION OF THE USE OF THE WATER OF LAKES AND PUBLIC STREAMS; AND FOR OTHER MATTERS INCIDENTAL TO OR CONNECTED WITH THE MATTERS AFORESAID.

Ordinances Nos. 8 of 1947, 9 of 1947, Act No. 13 of 1949.

[1st September, 1949.]

PART I

GRANTS, LEASES, AND OTHER DISPOSITIONS OF STATE LAND

2. Subject to the provisions of this Ordinance and of the regulations made thereunder, the President may in the name and on behalf of the Republic of Sri Lanka—

- (1) make absolute or provisional grants of State land;
- (2) sell, lease or otherwise dispose of State land;
- (3) enter into agreements for the sale, lease or other disposition of State land;
- (4) issue permits for the occupation of State land;
- (5) issue licences to take or obtain any substance or thing found in State land;
- (6) sell or lease the right to mine or gem in any State land or in any land which has been disposed of by the State with a reservation of mining rights in favour of the State.

3. The President may, in the name and on behalf of the Republic, accept the surrender of any land comprised in any grant, lease, or other disposition of State land.

4. (1) Where the owner of any land comprised in a State grant is desirous of dividing or partitioning such land, he may apply to the President to accept the surrender of such grant and to regrant the land comprised therein in parcels.

(2) If the lessee of any land leased by the State is desirous of dividing or partitioning such land, he may apply to the President to accept the surrender of such lease and to lease such land in parcels.

(3) The President, if satisfied with the title of the applicant under subsection (1) or subsection (2) and on payment by the applicant of all the costs and expenses of, or consequent on, such application, may accept the surrender of such grant or lease and may issue in lieu thereof to the applicant a State grant or lease, as the case may be, of the said land in such parcels as the applicant desires; and where more persons than one are joint owners or joint lessees of any land for the division or partition of which an application is made under this section, a grant or lease issued in lieu of a grant or lease surrendered may dispose of any parcel of the land surrendered to any one or

more of such joint owners or joint lessees.

(4) No such division or partition shall be allowed unless all moneys, if any, due under the original grant or lease have been paid in full.

5. The President may, subject to such terms and conditions as he may deem fit, dispose of State land to any person in exchange for any land surrendered or conveyed by such person to the Republic.

6. (1) A special grant or lease of State land may be made at a nominal price or rent or gratuitously for any charitable, educational, philanthropic, religious or scientific purpose, or for any other purpose which the President may approve.

(2) Every special grant or lease shall be substantially in the prescribed form and shall state that the title to the land conveyed thereby shall revert to the State if the land is not used for the purpose for which it was granted or leased or if it is applied to any other purpose.

(3) Upon proof that any land described in any special grant or lease has ceased to be used for the purpose for which it was granted or leased or has been applied to any other purpose or that there has been a failure to comply with any condition or to observe any covenant of the grant or lease, the State shall be entitled, upon application to a court of competent jurisdiction, to a decree cancelling the grant or lease and declaring the land to be vested in the State, free from all encumbrances; and the State shall not be liable to pay to any person any sum by way of compensation for improvements effected on the land subsequent to the date of the special grant or lease.

7. Notwithstanding anything in any law other than this Ordinance, where any land has been disposed of either before or after the commencement of this Ordinance for any purpose authorized under section 6 (1), such land may, in such cases and subject to such conditions as may be approved by the President, be surrendered to the State by the grantee or lessee or other person for the time being entitled to the possession and management of such land; and where such grantee or lessee or other person entitled to such possession or management cannot be found or ascertained, a court of competent jurisdiction may, on the application of the Attorney-General and after such inquiry as the court deems fit, by order authorize any suitable person to execute the instrument of surrender; and, upon the execution of any such instrument by such grantee or lessee or other person entitled to the possession and management of such land, or by any person so authorized, the land so surrendered shall vest in the State free from all encumbrances.

8. (1) Every disposition of State land under this Ordinance must be effected by an instrument of disposition executed in such manner as may be prescribed.

(2) Regulations may be made prescribing the conditions which may be attached to dispositions of State land. No such condition shall be deemed to be attached to any disposition of State land unless that condition is inserted in the instrument of disposition relating to that land.

9. No State grant and no instrument of disposition whereby State land is leased for any term exceeding such period as may be prescribed shall be issued under this Ordinance unless and until that land has been surveyed and demarcated to the satisfaction of the Land Commissioner.

10. No disposition of State land made under this Ordinance shall be deemed to confer any right to any mineral, mineral product or mineral oil in, under, or upon such State land unless otherwise expressly provided in the instrument of disposition, and, save as so expressly provided, all such minerals, mineral products and mineral oils shall, notwithstanding any such disposition, be deemed

to remain, and shall remain, the absolute property of the Republic.

11. Where the rights under any instrument of disposition are not personal to the grantee but may be assigned by act inter vivos or may pass on his death to his heirs or devisees, the burden of any covenants or conditions inserted in such instrument shall run with the land and shall be binding upon the grantee and upon all persons claiming that land through, from or under the grantee.

12. The grantee under any instrument of disposition shall be bound by any covenant or condition inserted therein notwithstanding the fact that he was a minor on the date of the execution of the instrument or that he, or any person on his behalf, did not sign the instrument or subscribe to such covenants and conditions.

13. The President may fix the payments to be made to or recovered by the State either generally in any class of dispositions or specially in respect of any particular disposition, whether by way of price, rent, royalty or otherwise, and may, subject to the covenants and conditions set out in the instrument relating to any such disposition, remit, revise or waive any such payments.

14. The President may at any time mitigate or release any of the terms, covenants and conditions set out in any lease, permit or licence issued under this Ordinance and may at any time by agreement with the grantee vary or modify any such terms, covenants or conditions.

15. Unless otherwise provided in the instrument of disposition, the President may extend the time allowed to the grantee for the performance of any act, condition or covenants set out in the instrument of disposition, for such period and upon such terms as he may think fit to impose; and the period so extended and the terms so imposed shall be deemed to be inserted in the instrument of disposition and shall have the same force and effect as a covenant or condition thereof.

16. (1) Where it is provided in any permit or licence that such permit or licence is personal to the grantee thereof, all rights under such permit or licence shall be finally determined by the death of such grantee.

(2) Where it is provided in any permit or licence that such permit or licence shall be personal to the grantee thereof, the land in respect of which such permit or licence was issued and all improvements effected thereon shall, on the death of the grantee, be the property of the State; and no person claiming through, from or under the grantee shall have any interest in such land or be entitled to any compensation for any such improvements.

17. (1) Where a Government Agent is of opinion that the grantee of any permit or licence has failed to observe any condition attached to any such permit or licence, he may cancel such permit or licence and eject the grantee in accordance with the procedure prescribed in sections 106 to 128 of the Land Development Ordinance which shall apply accordingly as though the grantee of a permit or licence under this Ordinance were a permit-holder under that Ordinance and as though the land which is the subject-matter of a permit or licence under this Ordinance were land alienated by a permit issued under that Ordinance:

Provided that any matter or form required by the Land Development Ordinance to be prescribed in connexion with the cancellation of a permit under that Ordinance shall, for the purpose of the application of that Ordinance to the cancellation of a permit or licence under this Ordinance, be prescribed under this Ordinance.

(2) Where a permit or licence is cancelled under subsection (1), all rights of the grantee under such

permit or licence shall cease and be finally determined.

18. Neither the grantee nor any other person shall be entitled to any compensation or damages whatsoever by reason of the cancellation of a permit or licence under section 17; and no claim for compensation or damages shall in any such case be entertained by any court:

Provided that nothing herein contained shall preclude the gratuitous payment of compensation in any such case.

19. Where in any instrument of disposition issued or executed either before or after the commencement of this Ordinance it is provided that any disposition of the land comprised in such instrument shall not be effected by the grantee without the prior consent or sanction of the President or of any specified officer of Government, any disposition executed by the grantee without such consent or sanction shall be void and inoperative for all purposes.

20. Where it appears to a prescribed officer that any instrument of disposition (whether executed before or after the commencement of this Ordinance) contains any clerical or other error or requires amendment in respect of the description of the land comprised therein or in respect of the inscription or recital of the name or designation of the grantee or of any other material fact, such error may be rectified or such amendment may be made by an indorsement on such instrument of disposition signed by such prescribed officer and the grantee; and any indorsement so signed shall be sufficient for all purposes to rectify the error or to effect the amendment; and the instrument on which any such indorsement is made shall have effect as though it had been originally issued or executed as so rectified or amended.

PART II

EXECUTION, AUTHENTICATION AND REGISTRATION OF INSTRUMENTS OF DISPOSITION

21. An instrument of disposition need not be issued under the Public Seal of the Island except in such cases and in such circumstances as may be prescribed.

22. Every instrument of disposition whereby any State land is granted or sold, or leased for a term exceeding the prescribed period, shall be signed and executed by the President. Every other instrument of disposition shall be signed and executed by the prescribed officer.

23. (1) The President may, if he thinks fit, instead of signing the original of any instrument of disposition, cause a facsimile of his signature to be stamped thereon; and any instrument so stamped shall be deemed to be signed by the President.

(2) The facsimile of the signature of the President shall be stamped on the original of any instrument by or in the presence of the Secretary to the President or some other person authorized in that behalf by the President; and the Secretary or such other person shall certify on the original that the facsimile of the President's signature was stamped thereon by him or in his presence, as the case may be.

24. (1) A copy of every instrument of disposition signed or deemed to be signed by the President shall be authenticated by the signature of a prescribed officer and shall be deposited for purposes of

record at the office of the Registrar of Lands of the district in which the land disposed of by that instrument is situate and at any other office which the President may from time to time appoint.

(2) A copy of any instrument authenticated in the manner prescribed in subsection (1) shall be primary evidence within the meaning of section 62 of the Evidence Ordinance of the instrument of which it purports to be a copy.

25. Any person who without the authority of the President obtains possession of or uses a stamp containing a facsimile of the President's signature shall be guilty of an offence and shall, on conviction after summary trial before a Magistrate, be liable to a fine not exceeding one thousand rupees, or to imprisonment of either description for a period not exceeding six months, or to both such fine and imprisonment.

26. (1) Every State grant and every instrument of disposition whereby State land is leased for a term exceeding the prescribed period shall, when issued, be forthwith registered at the instance of the Government Agent.

(2) No fee shall be paid or recovered for such registration.

27. (1) The President may, by order (hereinafter referred to as a "vesting order") vest any State land for purposes of administration in any naval, military, air force or local authority, subject to such terms and conditions as may be specified in such order.

(2) Where State land is vested in any naval, military, air force or local authority by a vesting order, any building or other structure standing or erected on such land shall be deemed to be vested in such authority by that order unless that order otherwise provides; and, where State land is vested in a local authority, this subsection shall have effect notwithstanding anything in the written law whereby such local authority is constituted or established.

Provided that nothing in this section shall affect or be deemed to affect the title of any person to any land sold or otherwise disposed of by any local authority under and in accordance with the provisions of any written law whereby such authority was constituted or established.

(3) In this section, "State land" includes State land in the possession of any local authority in respect of which no vesting order has been issued under any written law or otherwise prior to the commencement of this Ordinance, notwithstanding the fact that such local authority has effected any improvements on such land or been in possession thereof for any period prior to the commencement of this Ordinance.

28. Where the President has by vesting order vested any State land in any naval, military, air force or local authority which is not a corporation in law, the President may in such order specify by name or by office the person or officer to be responsible for the administration of the land so vested and for the due observance and fulfilment of the terms and conditions inserted in the vesting order; and the person or officer so specified in any vesting order shall have and is hereby granted full power and authority to represent, to act for, and to bind such naval, military, air force or local authority for all the purposes of this Ordinance; and where the holder of any office has been so specified in any vesting order, he shall for such purposes be deemed to be a corporation sole with perpetual succession under the name of that office.

29. It is hereby declared that, notwithstanding anything in any written law other than this Ordinance, where any State land has been or shall be vested in any local authority whether before or

after the commencement of this Ordinance and whether by or under any written law, or by vesting order, or otherwise, such land has been and is so vested for the purpose specified in the vesting order relating to such land or if no such purpose is specified, then for the purpose of administration only; and the right and title to the soil of such land has at all times been and shall always remain in the Republic.

30. (1) The President may at any time revoke a vesting order—

- (a) at the request of the naval, military, air force or local authority in favour of which the vesting order was made;
- (b) where in the opinion of the President there has been a breach of any term or condition subject to which the vesting order was made;
- (c) where in the opinion of the President the contingency has occurred on the happening of which the vesting order is to cease to be in force;
- (d) where in the opinion of the President the period for which the vesting order is to be in force has expired;
- (e) where in the opinion of the President the land comprised in the vesting order is required for any public purpose;
- (f) where in the opinion of the President the local authority in whose favour the vesting order was made has failed or neglected duly to administer the land comprised in such vesting order;
- (g) where in the opinion of the President the vesting order should be revoked in the public interest;
or
- (h) on any other prescribed ground or in any other prescribed circumstances.

(2) No vesting order whereby State land has been vested in any naval, military, air force or local authority shall be revoked unless and until that authority has been afforded an opportunity of showing cause or making representations against the proposed revocation.